

CV-25-008025 BABYLON BUILDERS INC vs HOMEADVISOR INC – a) Plaintiff's Motion to Compel Further Responses to Plaintiff's Requests for Production of Documents, Set One – DENIED. b) Plaintiff's Motion to Compel Code-Compliant Further Responses to Plaintiff's Special Interrogatories, Set One; Request for Monetary Sanctions – DENIED. c) Plaintiff's Motion to Compel Further Responses to Plaintiff's Form Interrogatories General, Set One (Form Interrogatory No.15.1) – DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: a-c) The motions to compel further responses are DENIED. No sanctions are issued. Plaintiff's motions to compel are untimely. Code of Civil Procedure section 2031.310(c) provides, "Unless notice of [a motion to compel further responses] is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand." Section 2030.300(c) similarly requires notice of a motion to compel further responses to interrogatories to be given within 45 days. California courts consistently hold that this 45-day deadline is mandatory and quasi-judicial. Failure to comply results in waiver of the right to compel further responses, and the court lacks discretion to excuse noncompliance absent a written stipulation extending the deadline. (See *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410 [noting that the 45-day time limit is jurisdictional "in the sense that it renders the court without authority to rule on motions to compel other than to deny them"]; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685 [describing discovery motion deadlines as operating in a manner that is jurisdictional in effect]; *Standon Co. v. Superior Court* (1990) 225 Cal.App.3d 898, 902 [stating that a failure to move to compel further responses "within the specified period constitutes a waiver of any right to compel a further response; indeed, similar provisions have been held at least quasi-judicial."].) Here, Defendant served its verified responses on April 21, 2026. The statutory deadline for a motion to compel was therefore June 9, 2026. Plaintiff did not file the motions until over 30 days beyond the 45-day deadline. The motion to compel further responses to special interrogatories was filed on July 8, 2026. The other two motions to compel were filed on July 13, 2026. Thus, the motions are untimely Plaintiff argues that Defendant, on May 28, 2026 via email, offered to extend the deadline to July 9, 2026. But that offer was never agreed to because, on or about May 28, 2026, Plaintiff served the motions to compel and/or represented that the motions had been filed with the Court. In its reply brief, Plaintiff states the May 28, 2026 "draft motions" were never filed with the Court and instead were served to facilitate efforts to resolve the disputes without judicial intervention. But on May 29, 2026, Plaintiff sent an email stating that at least one "motion has already been filed." On June 3, 2026, Plaintiff sent an email stating that it filed the motions a second time "due to a clerk request to correct filing selection" and stating that it would "withdraw the motions for now." Plaintiff stated that the motions had been filed and never accepted the offer to extend the deadlines. There is no written agreement extending the deadline. Plaintiff waived any right to compel further responses, and sanctions predicated on an untimely motion are improper. Defendant argues that sanctions should be imposed on Plaintiff for filing untimely motions. While the Court acknowledges other procedural irregularities in the motion, there is good cause not to issue sanctions under these circumstances. The following are the tentative rulings for cases calendared before Judge Stacy P. Speiller in Department 22:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 2653cfc090d7d7e1c79d74ce7d351f308f23516a12a92eda0575f52753c52c73

CV-25-008025 – BABYLON BUILDERS INC vs HOMEADVISOR INC – a) Plaintiff's Motion to Compel Further Responses to Plaintiff's Requests for Production of Documents, Set One – DENIED. b) Plaintiff's Motion to Compel Code-Compliant Further Responses to Plaintiff's Special Interrogatories, Set One; Request for Monetary Sanctions – DENIED. c) Plaintiff's Motion to Compel Further Responses to Plaintiff's Form Interrogatories General, Set One (Form Interrogatory No.15.1) – DENIED.

a-c) The motions to compel further responses are DENIED. No sanctions are issued.

Plaintiff's motions to compel are untimely.

Code of Civil Procedure section 2031.310(c) provides, "Unless notice of [a motion to compel further responses] is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand." Section 2030.300(c) similarly requires notice of a motion to compel further responses to interrogatories to be given within 45 days.

California courts consistently hold that this 45-day deadline is mandatory and quasi-judicial. Failure to comply results in waiver of the right to compel further responses, and the court lacks discretion to excuse noncompliance absent a written stipulation extending the deadline. (See *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410 [noting that the 45-day time limit is jurisdictional "in the sense that it renders the court without authority to rule on motions to compel other than to deny them"]; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685 [describing discovery motion deadlines as operating in a manner that is jurisdictional in effect]; *Standon Co. v. Superior Court* (1990) 225 Cal.App.3d 898, 902 [stating that a failure to move to compel further responses "within the specified period constitutes a waiver of any right to compel a further response; indeed, similar provisions have been held at least quasi-judicial."].)

Here, Defendant served its verified responses on April 21, 2026. The statutory deadline for a motion to compel was therefore June 9, 2026. Plaintiff did not file the motions until over 30 days beyond the 45-day deadline. The motion to compel further responses to special interrogatories was filed on July 8, 2026. The other two motions to compel were filed on July 13, 2026. Thus, the motions are untimely.

Plaintiff argues that Defendant, on May 28, 2026 via email, offered to extend the deadline to July 9, 2026. But that offer was never agreed to because, on or about May 28, 2026, Plaintiff served the motions to compel and/or represented that the motions had been filed with the Court. In its reply brief, Plaintiff states the May 28, 2026 "draft motions" were never filed with the Court and instead were served to facilitate efforts to resolve the disputes without judicial intervention. But on May 29, 2026, Plaintiff sent an email stating that at least one "motion has already been filed." On June 3, 2026, Plaintiff sent an email stating that it filed the motions a second time "due to a clerk request to correct filing selection" and stating that it would "withdraw the motions for now." Plaintiff stated that the motions had been filed and never accepted the offer to extend the deadlines. There is no written agreement extending the deadline. Plaintiff waived any right to compel further responses, and sanctions predicated on an untimely motion are improper.

Defendant argues that sanctions should be imposed on Plaintiff for filing untimely motions. While the Court acknowledges other procedural irregularities in the motion, there is good cause not to issue sanctions under these circumstances.

The following are the tentative rulings for cases calendared before Judge Stacy P. Speiller in Department 22: